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The International Joint Commission (IJC)

The International Joint Commission (IJC) was established under the Boundary Waters Treaty of 1909 between the United States and Canada. The treaty directs IJC to aid in the resolution and prevention of disputes concerning the waters that cross (transboundary) or form (boundary) the international border between the two countries, known collectively as *boundary waters*. The watersheds of these boundary waters are illustrated in **Figure 1**. IJC may be asked to consider issues related to drinking water, commercial shipping, hydroelectric power generation, agriculture, industry, recreational boating, and shoreline property, among others. Potential issues for Congress include the implementation of recommendations, enforcement of Order of Approval conditions, and funding for the U.S. portion of IJC activities.

IJC Functions

IJC functions as a nonpolitical research, advisory, and mediation body for the two national governments. IJC has six commissioners: three appointed by the President of the United States with the approval of the Senate (these positions are reappointed by each incoming Administration) and three appointed by the Governor in Council of Canada with the advice of the Prime Minister. The commissioners of each country select a chair apiece. The two chosen chairs serve concurrently. Canadian commissioners have fixed terms that vary from two years to five years. Under Article X of the treaty, IJC needs a majority of commissioners to agree to render a decision. Commissioners do not formally represent their countries and must declare in writing that

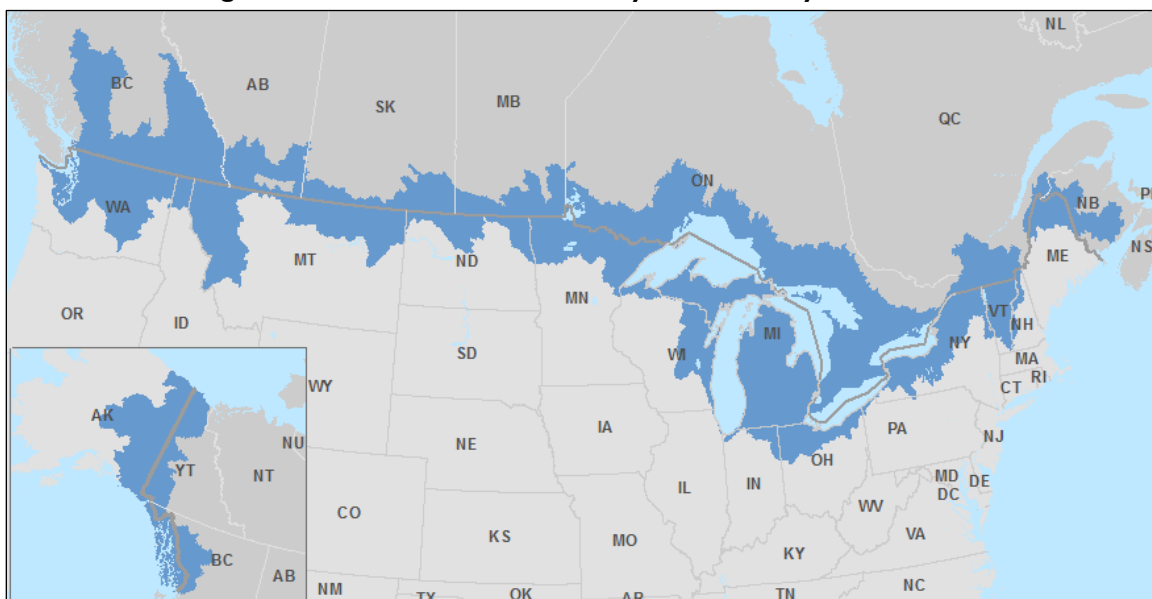
they will be impartial when carrying out the duties of the treaty. The IJC's decisions and recommendations are not necessarily a reflection of U.S. or Canadian national policies.

IJC has two primary duties under the treaty: (1) examine and report on questions or matters of difference between the U.S. and Canadian governments, known as a *reference*, and (2) approve any work in boundary waters affecting water levels on either side of the boundary, known as an *Order of Approval* (Order). As of September 2026, IJC supervises 19 expert boards, studies, and committees that respond to references and monitor the implementation of Orders; these groups draw upon the expertise of representatives from various organizations.

Reference

A *reference* addresses a question or a matter of difference between the United States and Canada. A reference can be submitted either by both countries or by one country. If jointly submitted, the reference contains specific questions for IJC to answer and a timeframe for a response, among other provisions. Under Article IX of the treaty, IJC is authorized to examine and report the facts of the questions under the reference and to draw conclusions and make recommendations as appropriate. Once IJC receives a reference, it generally appoints a board or committee to conduct investigations. IJC also holds public hearings and other forms of consultation and reports its findings and recommendations to both governments.

Figure 1. U.S.-Canada Transboundary and Boundary Watersheds



Source: CRS, from IJC, "Transboundary Waters," <https://www.ijc.org/en/transboundary-waters>.

Notes: State and province names are abbreviated. The areas denoted in dark blue designate transboundary and boundary watersheds along the border between the United States and Canada.

Upon the IJC's issuance of a report, the governments may request that IJC monitor progress in implementing the report's recommendations. IJC recommendations in response to references are nonbinding. For example, according to IJC, the two governments did not implement recommendations reported in 1962 regarding the Pembina River Basin. However, under treaty Article X, references that involve the rights, obligations, or interests of either government in relation to the other can be presented to IJC for a binding decision.

Order of Approval

Under treaty Articles III or IV, either the United States or Canada can submit an application seeking IJC's approval for proposed works or activities (such as dams, diversions, or bridges) that would use, change (with respect to water level), obstruct, or divert boundary waters. Once an application is submitted, IJC creates a board or uses an existing board to review it. The board determines whether the project should proceed and how it should be operated. IJC also holds public hearings on the application and allows stakeholders to provide input.

If IJC decides to approve a project, with or without conditions, it issues an Order. For example, in 1952, IJC received and approved an application from the United States and Canada to build and operate the Moses-Saunders Dam on the St. Lawrence River via an Order (1952 Order). IJC periodically reviews Orders and has the authority to amend an Order. IJC amended the 1952 Order in 1956 and again in 2016. By one account, 60 of 61 applications were approved between 1909 and 1995. One additional application was submitted and approved since 1995.

Congress and the IJC

Congress primarily interacts with IJC through its appropriation of funds to IJC and its approval of nominated IJC commissioners. Congress also may conduct oversight of IJC or projects and activities influenced by IJC decisions through hearings and letters to U.S. commissioners. Additionally, Congress can address boundary water issues by working with the executive branch or through enactment of legislation on issues that pertain to the United States. Activities authorized by new legislation, however, might be subject to a reference if they affect the boundary waters.

Other Agreements

The United States and Canada have granted IJC responsibilities under other agreements as well. For example, IJC implements the Great Lakes Water Quality Agreement (GLWQA). GLWQA addresses water quality issues in the Great Lakes. IJC provides technical assistance and assesses implementation effectiveness and progress toward meeting GLWQA objectives. IJC also has other responsibilities related to the Columbia River, Rainy Lake, Lake of the Woods, Souris River Basin, and transboundary air quality.

Potential Issues for Congress

Congress may consider whether issued or future reference recommendations should be binding under U.S. law. According to some prior commissioners, as of 2019, the two governments had never utilized the option to refer a question for a binding decision. Another set of researchers posited that "most but not all IJC recommendations are accepted and acted on by governments" as of 2020. The nonbinding nature of IJC recommendations may hamper the IJC's ability to effectively address issues involving the boundary waters; conversely, a nonbinding recommendation allows each country to decide how to best handle issues and retain sovereignty. Congress may consider whether to require IJC or another entity to maintain information about the implementation of recommendations.

Congress also may be interested in strengthening or otherwise changing mechanisms to enforce Orders. Under the treaty, IJC decisions related to applications are binding, and IJC appoints boards to monitor compliance with Orders. It is unclear how IJC may respond if an applicant violates an IJC Order. Congress may consider whether to provide IJC or another entity mechanisms to enforce IJC Orders or allow governments to respond as they see fit.

Congress may consider altering or maintaining the level of annual appropriations for IJC. The United States and Canada fund IJC, with project and report expenses shared equally between the two countries. According to explanatory statements accompanying annual appropriations laws, Congress appropriated \$10.9 million to IJC in each of FY2023 through FY2026. The Administration requested \$10.9 million for FY2027, including funding to support water body monitoring and some specific activities, such as the Great Lakes St. Lawrence River Adaptive Management Committee and the Elk-Kootenay-Transboundary Watershed Water Pollution reference, among other activities. In FY2025, the Biden Administration requested that Congress increase funding to IJC for additional water quality, water level, and flow monitoring. Some researchers also advocate for greater monitoring of the Great Lakes through better coordination of existing resources and infrastructure, and new investments and funding structures. Congress could consider providing funding for these activities, establishing and funding grants to support the implementation of boundary water projects, or compensating property owners for any negative impacts from IJC plan-caused water level changes, among other activities. Conversely, Congress may provide less funding for the IJC as part of a cost-saving measure or conclude that states and provinces or other nonfederal entities should provide funding for such projects or the IJC more broadly.

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